Further, in order to reduce the risk of "self-collision", it had always been considered justified to adopt a strict approach to novelty. For this reason, the Guidelines expressly stated that "when considering novelty, it is not correct to interpret the teaching of a document as embracing well-known equivalents which are not disclosed in the document; this is a matter of obviousness" (see Guidelines G-VI, 2 – March 2022 version). According to the case law of the boards of appeal the "whole contents" of an earlier document did not also comprise features which were equivalents of features in the later document (see also **T 928/93**, **T 1387/06**). **T 167/84** and **T 517/90** were applied in **T 1657/14**.

In **T 652/01** the appellant was of the opinion that although the relevant prior-art document did not explicitly mention a particular feature, that feature could be derived from the document by applying the document's teaching mutatis mutandis. The appellant had referred to **T 952/92** (OJ 1995, 755), which, in its first headnote, stated that "availability" within the meaning of Art. 54(2) EPC 1973 involved not only availability of the disclosure but also availability of information accessible and derivable from the disclosure, which meant that "derivable equivalents" were included. However, the board held that, when reading the cited phrase from **T 952/92** in the context of the present decision, it was clear that the term "derivable" had been employed in the sense of "obtainable by chemical analysis of a sample" and that it was used with the same restriction as expressed in opinion **G 1/92** (OJ 1993, 277), namely that it had to be "directly and unambiguously derivable".

4.6. Taking drawings into account

In **T 896/92** the board emphasised that, in accordance with **T 169/83** (OJ 1985, 193), further conditions were required as to the disclosure of a feature shown solely in a drawing. In this respect, not only should the structure of the feature be shown sufficiently clearly in the drawing, but also the technical function achieved should be derivable (see also **T 241/88**).

In **T 204/83** (OJ 1985, 310) the board held that features shown solely in a drawing formed part of the state of the art when a person skilled in that art was able, in the absence of any other description, to derive a technical teaching from them. Dimensions obtained merely by measuring a diagrammatic representation in a document did not, however, form part of the disclosure (see **T 857/91**, **T 272/92**, **T 1488/10**, **T 1943/15**).

In **T 451/88** the distinction was drawn between scaled construction drawings and the schematic drawings conventionally included in patent documents, the latter being sufficient to indicate the essential elements of the invention but not to manufacture the product. It was found that schematic drawings could not be used to derive a ratio between two dimensions (**T 1664/06**).

In **T 56/87** (OJ 1990, 188) the board held that a technical feature which was derived from or based on dimensions obtained from a diagrammatic representation and which technically contradicted the teaching of the description, did not form part of the disclosure of a document.

T 748/91 was concerned with measuring relative dimensions in drawings. In that case the board found that size ratios could, under certain circumstances, be inferred even from a schematic drawing.

In **T 2052/14**, the board observed that, even though the examining division had had the impression that drawings in a prior-art document showed the feature in the characterising portion of claim 1, that did not amount to a direct and unambiguous disclosure for the skilled person, who would know that those drawings were merely schematic views from which, in the absence of any specifications, no specific sizes or proportions could be derived. Since the drawings at issue were not marked as true to scale, they could only be standard schematic views.

In **T 141/16** the board found that although the figures of the prior art document E4 were merely schematic and no measurements could therefore be directly taken from such drawings, some information could be unambiguously derived fro them. However, figure 3 of the prior art document E4 represented a clear and unambiguous disclosure of a particular angle, in the sense that the components were shown "slanted".

4.7. Taking examples into account

In **T 12/81** (OJ 1982, 296) the board held that the teaching of a cited document was not confined to the detailed information given in the examples of how the invention was carried out, but embraced any information in the claims and description enabling a person skilled in the art to carry out the invention (see also **T 562/90**). In **T 424/86** the board stated that the disclosure of a document was not to be construed only on the basis of the examples thereof; rather, the entire document had to be taken into consideration (see also **T 373/95**). In **T 68/93** the board stated that it was not allowable to take a particular example out of context. In **T 12/90**, the board decided that the disclosure in a prior document likely to affect the novelty of a claim was not necessarily limited to the specific working examples, but also comprised any reproducible technical teaching described in the document (see also **T 247/91** and **T 658/91**).

In **T 290/86** (OJ 1992, 414) the board decided that what was "made available to the public" by specific detailed examples included in a document was not necessarily limited to the exact details of such specific examples but depended in each case upon the technical teaching which was "made available" to a skilled reader. The amendment of a claim by including a disclaimer in respect of such specific detailed examples could not render the claim novel.

In **T 666/89** (OJ 1993, 495) the board stated it was necessary to consider the whole content of a citation when deciding the question of novelty. In applying this principle, the evaluation was therefore not to be confined merely to a comparison of the claimed subject-matter with the examples of a citation, but had to extend to all the information contained in the earlier document.

In **T 1049/99** the board noted that in the case of a "written description" open to public inspection, what is made available is all the information contained in that description. In some cases, the information contained in the written description, such as teaching on ways of carrying out a process, also provides access to other information necessarily resulting from the application of that teaching (**T 12/81**, OJ 1982, 296; **T 124/87**, OJ 1989, 491; **T 303/86**).

4.8. Broad claims

In **T 607/93** the board decided that when novelty and inventive step were being assessed, there was no reason to use the description to interpret an excessively broad claim more narrowly, if it was a question not of understanding concepts that required explanation but rather of examining an excessively broad request in relation to the state of the art. This was applied in e.g. **T 2487/12**, **T 5/14** and **T 1173/17**.

4.9. Deficiencies and mistakes in a disclosure

Mistakes in a document do not in themselves constitute prior art such as to prevent the grant of a patent.

In **T 77/87** (OJ 1990, 280) the abstract published in the journal "Chemical Abstracts" did not correctly reproduce the original paper. The board stated that the original document was the primary source of what had been made available as a technical teaching. Where there was a substantial inconsistency between the original document and its abstract, it was clearly the disclosure of the original document that had to prevail. The disclosure in the original document provided the strongest evidence as to what had been made available to the skilled person. When it was clear from related, contemporaneously available evidence that the literal disclosure of a document was erroneous and did not represent the intended technical reality, such an erroneous disclosure should not be considered part of the state of the art.

In **T 591/90** a prior document again contained mistakes. The board distinguished this case from **T 77/87** (OJ 1990, 280), which had concerned a special case, and took the view that a document normally formed part of the prior art even if its disclosure was deficient. In evaluating such a disclosure it was to be assumed, however, that the skilled reader was mainly "interested in technical reality". Using his general technical knowledge and consulting the reference literature, he could see at once that the information in question was not correct. It could be assumed that a skilled person would try to correct recognisable errors, but not that he would take the deficient disclosure as pointing the way towards a solution to an existing technical problem.

In **T 412/91** the board took the view, having regard to Art. 54 EPC 1973, that the incorrect teaching of document (1) was not comprised in the state of the art. It stated that, in principle, what constituted the disclosure of a prior art document was governed not merely by the words actually used in its disclosure, but also by what the publication revealed to the skilled person as a matter of technical reality. If a statement was plainly wrong, whether because of its inherent improbability or because other material showed that it was wrong, then – although published – it did not form part of the state of the art. Conversely, if the skilled person could not see the statement was wrong, then it did form part of the prior art.

(The board in **T 523/14**, in which an advertising newsletter was alleged to be prior art, found that the case was not comparable to **T 412/91**, which one of the parties had cited).

In **T 89/87** the board found that "0.005 mm" (= 5 µm) was a misprint contained in the prior document and that only "0.0005 mm" (= 0.5 µm) was correct. The board stated that the correction was such that the skilled reader would be expected to make it as a matter of course.

In **T 230/01** the board noted that a document normally forms part of the state of the art, even if its disclosure is deficient, unless it can unequivocally be proven that the disclosure of the document is **not enabling**, or that the literal disclosure of the document is manifestly erroneous and does not represent the intended technical reality. Such a non-enabling or erroneous disclosure should then not be considered part of the state of the art.

In **T 428/15** the objection that D3 anticipated the subject-matter of claim 1 was based on passages of a **computer-generated translation** whose quality did not allow the board to understand with a sufficient degree of certainty what was in fact described in D3. Furthermore, the appellant did not submit a human translation of the relevant passages, which would have clarified the issue, or provide technical explanations which would have rendered credible that the true meaning of the vague passages concerning the use of chloroform and the apparently described rinsing step was immaterial to the conclusion to be drawn in respect of the nature of obtained product A1. Compare with **T 655/13**, in which the board considered the examining division's failure both to identify in its decision the relevant passage of a Japanese technical journal it had cited as prior art allegedly disclosing one of the claimed features and to provide a translation of that passage amounted to a breach of the duty to give reasons (R. 111(2) EPC).

4.10. Accidental disclosure

An anticipation is accidental if it is so unrelated to and remote from the claimed invention that the person skilled in the art would never have taken it into consideration when making the invention. When an anticipation is taken as accidental, this means that it appears from the outset that the anticipation has nothing to do with the invention (**G 1/03** and **G 2/03**, OJ 2004, 413 and 448; **T 134/01**, **T 1911/08**).

In **G 1/03** and **G 2/03** (OJ 2004, 413 and 448), the Enlarged Board of Appeal observed that different definitions of accidental anticipation had been put forward (see referrals **T 507/99**, OJ 2003, 225 and **T 451/99**, OJ 2003, 334). Often cited were decisions **T 608/96** and **T 1071/97**, which said in similar terms that a disclosure was accidentally novelty-destroying if it was disregarded by the skilled person faced with the problem underlying the application, either because it belonged to a remote technical field or because its subject-matter suggested it would not help to solve the problem. Thus, according to these decisions, the disclosure had to be completely irrelevant for assessing inventive step.

The Enlarged Board noted that the individual elements of these and other attempts to find an adequate definition could not be taken in isolation. The fact that the technical field was remote or non-related might be important but was not decisive because there were situations in which the skilled person would also consult documents in a remote field. Even less decisive, as an isolated element, was the lack of a common problem, since the more advanced a technology was, the more the problem might be formulated specifically for an invention in the field. Indeed, one and the same product might have to fulfil many requirements in order to have balanced properties making it an industrially interesting product. Correspondingly, many problems related to different properties of the product might be defined for its further development. When looking specifically at improving one property, the person skilled in the art could not ignore other well-known requirements. Therefore, a "different problem" might not yet be a problem in a different technical field. What counted was that from a technical point of view, the disclosure in question had to be so unrelated and remote that the person skilled in the art would never have taken it into consideration when working on the invention (to this effect, see **T 608/96**, cited in referral **T 507/99**). This should be ascertained without looking at the available further state of the art because a related document did not become an accidental anticipation merely because there were other disclosures which were even more closely related. In particular, the fact that a document was not considered to be the closest prior art was not sufficient to accept an accidental anticipation (see, however, **T 170/87**, OJ 1989, 441).

Accidental anticipation understood in the sense outlined above not only corresponds to the literal meaning of the term, but also limits disclaimers to situations in which there is a justification comparable to the case of conflicting applications for which the allowability of disclaimers has been accepted (see also chapter II.E.1.7. "Disclaimers").

In **T 161/82** (OJ 1984, 551) the board found that the prior art document was concerned with the solution of a problem totally different from that stated in the application at issue and concluded that in cases where an anticipation was of a chance nature, in that what was disclosed in a prior document could accidentally fall within the wording of a claim to be examined for novelty without there being a common technical problem, a particularly careful comparison had to be made between what could fairly be considered to fall within the wording of the claim and what was effectively shown in the document (see also **T 986/91**).

4.11. Reproducibility of the content of the disclosure

According to the established case law a disclosure destroys novelty only if the teaching it contains is reproducible, i.e. can be carried out by the skilled person (**T 1437/07**, **T 1457/09**). Subject-matter described in a document can only be regarded as having been made available to the public, and therefore as comprised in the state of the art pursuant to Art. 54(1) EPC, if the information given therein to the skilled person is sufficient to enable him, at the relevant date of the document, to practise the technical teaching which is the subject of the document, taking into account also the general knowledge at that time in the field to be expected of him (see **T 26/85**, **T 206/83**, **T 491/99**, **T 719/12**).

In **T 206/83** (OJ 1987, 5), in particular, it was found that a document did not effectively disclose a chemical compound, even though it stated the structure and the steps by which it was produced, if the skilled person was unable to find out from the document or on the